

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, STATE OF FLORIDA
FAMILY LAW DIVISION**

In re: the Marriage of:

SARAH HANSON,

Petitioner,

Case Number: 24-DR-001150

and

Division: D

CHRISTOPHER HANSON,

Respondent.

_____/

WIFE’S MOTION FOR VOCATIONAL EVALUATION OF HUSBAND

The Petitioner, Sarah Hanson, by and through the undersigned attorney, pursuant to Fla. Fam. L. R. P. 12.360 (a) (1) (b), files Wife’s Motion for Vocational Evaluation of Husband, and moves the Court for a vocational evaluation of Respondent, Christopher Hanson. As grounds therefore, Petitioner states the following:

1. Pending before the Court is an action for dissolution of marriage with minor children and for other related relief.
2. The parties to this action are Petitioner, Sarah Hanson (“**Wife**”) and Respondent, Christopher Hanson (“**Husband**”), collectively, (the “**Parties**”).
3. There are two (2) minor children who were born to the Parties during the marriage, to wit: H.G.H., a female, born October 2017, at Tampa, Florida; and H.G.H., a female, born July 2019, at Tampa, Florida (the “**Children**”).
4. Child support, which is governed by section 61.30, Florida Statutes, is at issue in this action.
5. Child support is based in substantial part, on the respective incomes of the parties.
6. According to Husband’s Family Law Financial Affidavit filed June 28, 2024 [**DIN 34**], Husband is an attorney licensed to practice law in the State of Florida but is unemployed

claiming that he is “[c]urrently unable to work due to health issues.”

7. On May 16, 2024, Husband filed a Response to Motion to Compel Payments and Motion to Compel Evidence of Marital Assets and Financial Information [DIN 22] wherein Husband claims he is unable to work because:
 - a. Husband “struggled to continue to do the job often suggesting that he needed to find another line of work” and that “[c]urrently [Husband] is unable to work due to severe mental, physical, and emotional conditions relating to these marital and other recent issues.” (¶ 21).
 - b. Husband “is undergoing invasive treatments both for physical and psychiatric issues...” (¶ 22).
 - c. Husband “will soon start daily (5 days per week) TMS treatments that will increase the time and cost of necessary medical care.” (¶ 22).
8. Oddly, despite Husband’s claims that he is unable to work due in part to “severe mental, physical, and emotional conditions,” Husband is vehemently opposed to Wife’s Motion for Psychological Testing of Husband [DIN 77].
9. Section 61.30 (2)(b), Florida Statutes states in relevant part that, “[m]onthly income shall be imputed to an unemployed or underemployed parent if such unemployment or underemployment is found by the court to be voluntary on that parent’s part, absent a finding of fact by the court of physical or mental incapacity or other circumstances over which the parent has no control. In the event of such voluntary unemployment or underemployment, the employment potential and probable earnings level of the parent shall be determined based upon his or her recent work history, occupational qualifications, and prevailing earnings level in the community if such information is available.”

10. Wife respectfully submits that Husband is able to work full time and earn an income commensurate with that which he earned in the past, especially considering his self-representation in the instant dissolution of marriage when his second attorney withdrew on or about December 13, 2024 [**DIN 81**]. Husband's refusal to work is voluntary.
11. The Court should note that despite Husband's assertion that he is unable to work due to his claimed "severe mental, physical, and emotional conditions," he asserts that he is perfectly able to raise and care for his young children fifty percent of the time. (Emphasis added).
12. Absent an actual and demonstrated physical or mental incapacity or other circumstances out of Husband's control, the Court should impute income to Husband for purposes of calculating the Parties' respective child support obligations.
13. The Court has the authority to order a party to submit to a vocational evaluation where the party's ability to work is in controversy.
14. Husband's ability to work, practice law, and to contribute to the financial support of the Children is an issue in this matter that must ultimately be determined by the Court.
15. A vocational evaluation is necessary to determine Husband's earning capacity before the Court can make the required findings regarding the issues relating to child support in this action.
16. For the reasons set forth herein, good cause exists to support a vocational evaluation of Husband.
17. Although Husband refuses to work, his assets exceed Wife's assets. Further, the filing of this motion is necessitated based upon Husband's refusal to work. Wife requests that the Court order Husband to initially pay for the cost of the evaluation with a reservation to potentially reallocate same at the final hearing in this matter.

18. Wife engaged the undersigned attorney to represent her in this action and is obligated to pay attorney's fees, costs, and suit money for professional services rendered. The Premarital Agreement addresses attorney's fees incurred for the enforcement of the provisions therein and states "Should any party hereto retain counsel for the purpose of enforcing or preventing the breach of any provision of this Agreement, including, but not limited to, by instituting any action or proceeding to enforce any provision hereof, for damages by reason of any alleged breach of any provision hereof, for a declaration of such party's rights or obligations hereunder, or for any other judicial remedy, then the prevailing party shall be entitled to be reimbursed by the losing party for all reasonable costs and expenses incurred thereby, including, but not limited to, reasonable attorney's fees and costs for the services rendered to such prevailing party, whether at trial, in bankruptcy or reorganization proceedings, or on appeal." The Court should award Wife her reasonable attorney's fees, costs, and suit money incurred in connection with the filing and litigation of this motion. Furthermore, Wife asserts that this motion is necessary solely because of Husband's refusal to work. Therefore, the Court should award Wife her attorney's fees, costs, and suit money pursuant to the Court's inherent authority. See *Rosen v. Rosen*, 696 So.2d 679 (Fla. 1997); *Wrona v. Wrona*, 592 So.2d 694 (Fla. 2d DCA 1991); *Young v. Hector*, 884 So.2d 1025 Fla. 3d DCA 2004); *Sutter v. Sutter*; 578 So.2d 788 (Fla. 4th DCA 1991); *Moakley v. Smallwood*; 826 So.2d 221 (Fla. 2002); *Dralus v. Dralus*, 627 627 So.2d 505 (Fla. 2d DCA 1993).

WHEREFORE, Wife, Sarah Hanson, respectfully requests that this Honorable Court enter an Order granting the following relief:

A. Require Husband to attend and fully participate in a vocational evaluation as requested

herein;

- B. Order that Husband pay for the entire cost of the vocational evaluation subject to a potential reallocation at the final hearing in this matter;
- C. Award Wife her reasonable attorney fees as requested herein;
- D. Award any and all other relief requested in this motion; and
- E. Grant any other relief that is necessary and appropriate under the circumstances

Respectfully submitted,

/s/ Scott Paul Davis

Scott Paul Davis, Esq., B.C.S.
Fla. Bar No. 0115540
scott@davislawtampa.com
service@davislawtampa.com
TAMPA BAY FAMILY LAW & MEDIATION, P.A.
P.O. Box 118667
Tampa, FL 33679
(813) 251-6222 (telephone)
Counsel for Wife

CERTIFICATE OF SERVICE

I hereby certify that, on January 31, 2025, a true and correct copy of the foregoing was served via the Florida Courts E-Filing Portal on Husband, Christopher Hanson.

/s/ Scott Paul Davis

Scott Paul Davis, Esq., B.C.S.